

participant/case info review zone

Illinois Expungement & Sealing Agent Training Reference

A complete operational knowledge base for record-clearing eligibility, the expungement/sealing distinction, waiting periods, exclusions, forms, and filing under Illinois law.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	Statewide (all 102 counties; Circuit Court of each county; Cook County's 6 districts)
Primary statute	Criminal Identification Act, 20 ILCS 2630/5.2
Related law	Cannabis Regulation and Tax Act (410 ILCS 705); Clean Slate Act (P.A. 104-0459 / HB 1836); Certificate statu
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, including Clean Slate Act signed Jan 16, 2026

VERIFY BEFORE RELYING

Illinois law is mid-transition. The Clean Slate Act (HB 1836, P.A. 104-0459) was signed January 16, 2026. Most provisions take effect June 1 / June 30, 2026; the shortened sealing waiting period (3 to 2 years for certain records) and removal of the drug-test requirement take effect June 30, 2026; and AUTOMATIC sealing does not begin until January 1, 2029, phasing in through 2034. Until automatic sealing is live, the petition-based process remains the only route for most records. The agent must not tell a user their record will be sealed automatically before 2029, and must verify which effective date applies to any given rule.

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How the agent should use this document

Illinois differs fundamentally from petition-by-offense-level states. The master question is not "misdemeanor or felony" but **expungement vs. sealing**. Expungement physically destroys or returns the record and is generally available only for non-convictions and supervision/qualified-probation dispositions. Sealing hides the record from most public view (but not law enforcement) and is available for most misdemeanor and felony convictions, subject to an exclusion list. The agent should always (1) determine the disposition type first, (2) decide expungement vs. sealing from that, (3) check the offense against the exclusion list, then (4) apply the waiting period.

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Statutory shorthand used throughout

20 ILCS 2630/5.2	Criminal Identification Act — core expungement & sealing statute
5.2(b)	Expungement provisions (non-convictions, supervision, qualified probation)
5.2(c)	Sealing provisions and the list of offenses that may NOT be sealed
5.2(a)(1)(G)	"Minor traffic offense" definition — these don't affect eligibility
5.2(d)	The filing/objection procedure (5 steps; 60-day objection window)
410 ILCS 705	Cannabis Regulation and Tax Act — minor-cannabis automatic expungement
730 ILCS 5/5-5.5	Certificates of Good Conduct / Relief From Disabilities / Eligibility for Sealing
P.A. 104-0459	Clean Slate Act (HB 1836) — automatic sealing, eff. phases 2026–2034

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1. Eligibility rules: expungement vs. sealing

The two remedies are not interchangeable, and a record is usually eligible for one or the other, not both. The agent's first job is to route the user to the correct remedy.

Expungement (record destroyed or returned)

Available, generally, when the case did NOT end in a conviction:

- Arrests or charges that did not lead to a conviction (no charges filed, dismissed, nolle prosequi, stricken with leave, or a finding of not guilty / acquittal).
- Cases that ended in court **supervision** — supervision is not a conviction, so most supervision dispositions are expungeable after the waiting period.
- **Qualified probation** successfully completed and the case dismissed: 410 (drug), 710, 1410, TASC, Second Chance probation.
- A conviction that was reversed, vacated, or for which the petitioner was found factually innocent.
- A conviction pardoned by the Governor with express authorization to expunge.
- Certain minor cannabis offenses (often handled automatically — see Section 9 and the cannabis note below).

Sealing (record hidden from most public view)

Available, generally, for convictions that cannot be expunged:

- Most **misdemeanor convictions** (except those on the exclusion list in Section 3).
- Most **felony convictions** — since 2017's HB 2373, nearly all felony classes are sealable, with limited exceptions, after the waiting period. (Before 2017 only nine felonies qualified.)
- Convictions, first-offender probation, 410/TASC probation that resulted in a conviction.
- Sealed records remain visible to law enforcement, courts, and certain licensing bodies; they are hidden from employers, landlords, and the general public.

Cannabis — a special automatic track

Under the Cannabis Regulation and Tax Act, a "minor cannabis offense" (possession of not more than 30 grams, no penalty enhancement, not tied to a violent crime) committed before June 25, 2019 is eligible for **automatic** expungement of the arrest record by the Illinois State Police on a rolling timeline (records pre-2000 by Jan 1 2025; 2000–2012 by Jan 1 2023; 2013–6/25/2019 by Jan 1 2021). Minor-cannabis **convictions** route through the Prisoner Review Board for a Governor's pardon authorizing expungement. Possession of 30–500 grams, or Class 4 PWID of 30 grams or less, requires a petition to expunge.

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AGENT GUIDANCE

Decision order every time: (1) Did it end in a conviction? If no, expungement. If yes, sealing unless reversed/vacated/pardoned-to-expunge. (2) Is the offense on the sealing exclusion list? If yes, neither petition route works and you should discuss certificates or wait for any future eligibility. (3) Apply the waiting period.

Supervision is the most commonly misunderstood disposition: it is NOT a conviction and IS expungeable. If a user says they "got supervision," route to expungement, not sealing.

2. Waiting periods

Waiting periods run from the **termination of the petitioner's last sentence** (Illinois deems a sentence terminated even with an outstanding financial obligation). Note the Clean Slate Act shortens several sealing periods effective June 30, 2026.

Disposition / matter	Remedy	Waiting period	Notes
No conviction (dismissed, acquitted, no charges)	Expunge	None	Eligible immediately
Reversed / vacated conviction	Expunge	None	Subject to narrow exclusions
Court supervision (most offenses)	Expunge	2 years	After completion of supervision
Supervision: DUI-adjacent, domestic battery, crim. sexual abuse	Expunge	5 years	Longer period by offense
Qualified probation (410/710/1410/TASC/2nd Chance)	Expunge	5 years	Clean Slate removes the 30-day drug-test rule (6/30/26)
Misdemeanor / ordinance conviction	Seal	3 yrs -> 2 yrs (eff. 6/30/2026)	Clean Slate shortens to 2 yrs
Felony conviction (eligible classes)	Seal	3 years	From termination of last felony sentence
Any eligible record + educational milestone	Seal	0 (waived)	HS diploma/GED, associate's, bachelor's, career/voc cert

The **educational waiver** is a powerful and underused tool: if the petitioner completed a high school diploma, GED, associate's, bachelor's, or a career/vocational/technical certificate during the period of their last sentence (and had not already earned that same credential), the 3-year sealing wait can be waived entirely. The Clean Slate Act preserves the educational waiver but, per Illinois Legal Aid, the 2-year period generally cannot be waived.

AGENT GUIDANCE

Compute every waiting period from the end of the LAST sentence, not the offense or conviction date. A later, unrelated sentence resets the clock.

Always screen for the educational waiver — ask whether the user earned any qualifying credential during their sentence. It can take a 3-year wait to zero.

For sealing waiting periods, check the date: before 6/30/2026 use 3 years for misdemeanors; on or after, use 2 years. State the effective-date dependency rather than guessing.

3. Disqualifying offenses (cannot be sealed)

These offenses are excluded from sealing under 20 ILCS 2630/5.2(c), whether the disposition was court supervision or a conviction. The Clean Slate Act did **not** add to or remove from this list — a record ineligible before remains ineligible. If a matter is on this list and ended in a conviction, neither expungement nor sealing is generally available.

- **DUI** and aggravated DUI (even when the disposition was supervision rather than conviction).
- **Reckless driving** — unless the petitioner was under 25 at the time of the offense and has no other DUI/reckless-driving convictions (the youthful-offender exception).
- **Domestic battery** and aggravated domestic battery; felony domestic battery is also excluded.
- **Violation of an order of protection.**
- **Sex offenses** under Article 11 of the Criminal Code (with a narrow exception historically made for prostitution), and any offense requiring sex-offender registration.
- **Any sexual offense committed against a minor.**
- **Crimes of violence** as defined under the Crime Victims Compensation Act and most serious violent felonies (e.g., homicide, Class X felonies).
- **Class A misdemeanors and above under the Humane Care for Animals Act** (animal cruelty).
- Other misdemeanor offenses listed under Article 11 of the Criminal Code.

Things that do NOT disqualify

- **Minor traffic offenses** (petty/business offenses, Class C misdemeanors under the Vehicle Code) do not affect eligibility to expunge or seal other records — but note they cannot themselves be expunged or sealed.
- **Prior felony convictions.** Under the Clean Slate framework you are no longer automatically disqualified from sealing a felony merely because of another felony conviction.

VERIFY BEFORE RELYING

These are statutory categories, not labels. Map the user's actual charge to its Criminal Code section before declaring it excluded or eligible. The domestic-battery and Article 11 boundaries in particular were reshaped by P.A. 101-223 and P.A. 101-651, and the youthful-offender reckless-driving exception turns on exact age and history. Verify against the current 5.2(c) text.

AGENT GUIDANCE

If a conviction is on this list, do not promise relief. Pivot to whether a non-conviction disposition exists, whether a certificate (Relief From Disabilities / Good Conduct / Eligibility for Sealing) could help with specific barriers, or whether any future statutory change applies.

DUI is the single most common disqualifier users misjudge — it is excluded even when the result was supervision. Flag DUI early.

4. Case outcome rules

Disposition type maps to remedy. This table is the agent's primary routing logic.

Case outcome	Remedy	Mandatory / discretionary	Key condition
No charges filed / arrest only	Expunge	Court generally must grant	Waiting period if any
Dismissed / nolle prosequi / stricken w/ leave	Expunge	Generally granted	No conviction entered
Found not guilty (acquittal)	Expunge	Generally granted	No conviction entered
Court supervision (completed)	Expunge	Discretionary	Waiting period (2 or 5 yr)
Qualified probation (410/710/1410/TASC/2nd Chance), dismissed	Expunge	Discretionary	5-yr wait
Conviction reversed / vacated / factual innocence	Expunge	Mandatory on innocence finding	Court order
Misdemeanor / felony conviction (eligible class)	Seal	Discretionary	Waiting period; not excluded
Excluded offense (Sec. 3)	Neither	Not available	Consider certificates

After a court enters an expungement or sealing order, it provides copies to the Illinois State Police, the petitioner, the State's Attorney, the arresting agency, the chief legal officer of the arresting unit of local government, and any other ordered agencies. Agencies have up to 60 days from the order to process it. Once sealed, Illinois law generally prohibits most employers from asking whether a person ever had a record expunged or sealed.

AGENT GUIDANCE

Distinguish mandatory from discretionary in your framing. Non-conviction expungements are close to automatic on a proper petition; supervision and conviction-sealing are discretionary and the judge weighs the offense, history, and rehabilitation.

Expungement removes the record entirely; sealing only hides it from the public. Be precise — users often say "expunge" when only sealing is available for a conviction.

5. Required forms

Unlike Mississippi, Illinois HAS a mandatory statewide form suite. The Illinois Supreme Court Commission on Access to Justice, with the Office of the State Appellate Defender (OSAD), publishes standardized expungement/sealing forms that **every Illinois circuit court is required to accept**. The agent should always steer users to these official forms rather than drafting a bespoke pleading.

The core statewide forms

- 1 Request to Expunge and Impound and/or Seal Criminal Records** — the main petition; one form covers both remedies via checkboxes, listing each arrest/case to be cleared.
- 2 Notice of Filing** — served on the State's Attorney, arresting agency, chief legal officer, and Illinois State Police to notify them of the request and start their objection window.
- 3 Order to Expunge and Impound and/or Seal Criminal Records** — the proposed order the judge signs; arrest information must be completed and submitted with the Request.
- 4 Fee Waiver Application** (Application for Waiver of Court Fees) — for petitioners who cannot afford the filing and State Police fees.

Where to get them

- Illinois Courts Standardized State Forms website (illinoiscourts.gov) — official fillable PDFs.
- Office of the State Appellate Defender (osad.illinois.gov) — forms plus eligibility worksheets; OSAD Expungement Unit help line.
- Illinois Legal Aid Online (illinoislegalaid.org) — a free guided "Easy Form" interview that assembles the completed forms (it does not e-file them).

Supporting material

- The petitioner's statewide criminal-history transcript (RAP sheet) from the Illinois State Police (see Section 9).
- Case/disposition information for every arrest and charge being cleared (dates, arresting agency, case number, disposition).
- For qualified-probation expungements filed before 6/30/2026, historically a clean drug test within 30 days — the Clean Slate Act removes this requirement effective 6/30/2026.

AGENT GUIDANCE

Because the forms are mandatory statewide, never tell a user a county requires a different bespoke petition. The Request, Notice, and Order travel together; an Order with arrest info must accompany the Request at filing.

Recommend the Illinois Legal Aid Easy Form to users who want guided drafting, but remind them it does not file for them — they still file with the circuit clerk and (often) e-file.

6. Filing instructions

The statewide 5-step process under 20 ILCS 2630/5.2(d):

- 1 Get your criminal-history transcript** (RAP sheet) from the Illinois State Police so every arrest and disposition is accounted for.
- 2 Complete the Request, Notice, and Order.** Mark expunge vs. seal per case; list each arrest with dates, arresting agency, case number, and disposition.
- 3 File with the circuit clerk** in the county where the arrest or charge occurred — venue is the sentencing/charging county, not the county of residence. Pay the filing fee (or file a Fee Waiver).
- 4 Serve notice** on the State's Attorney, the arresting agency, the chief legal officer of the arresting unit of local government, and the Illinois State Police, using the Notice of Filing.
- 5 Objection window and hearing.** Those agencies have **60 days** to object. If no objection, many courts grant without a hearing; if there is an objection, the court sets a hearing and the petitioner presents their case. The judge enters the Order; agencies then have up to 60 days to process it.

Multiple cases and counties

- File in each county where you have records; a separate filing is generally needed per county.
- In **Cook County**, only one fee is charged for all petitions filed on the same date, even across multiple districts; Cook County has 6 districts and you file in the district matching the case.
- If a Cook County order is not processed within ~70 days, the petitioner can mail a copy of the order plus proof of payment (or fee waiver) to the Illinois State Police Expungement Unit to push it through.

AGENT GUIDANCE

Pin down the county (and Cook County district) of each arrest before advising on filing — venue is non-negotiable and per-county.

Set expectations on timing: the typical Illinois expungement/sealing runs about 4–6 months from filing to final order, longer if an agency objects, plus up to 60 days for agencies to process.

7. Court-specific quirks

- **Standardized forms, local filing rules.** The forms are uniform statewide, but copy counts, e-filing rules, and mailing procedures differ by county — petitioners should call the clerk first.
- **Cook County single-fee rule.** One fee covers all same-day petitions across districts; this is a meaningful saving for users with multiple cases. Cook also has dedicated expungement divisions.
- **Specialized judges.** Larger counties route these to judges in special expungement/sealing divisions who may rotate; in smaller counties the original sentencing judge often hears the petition.
- **Cook County processing delays.** Documented backlogs; the ISP-Expungement-Unit mail-in remedy (after ~70 days) is a known workaround.
- **State Police processing fee.** Most counties bundle an ISP fee with the clerk fee (e.g., McLean County's \$136 total = \$60 filing + \$60 ISP + \$16 for four certified copies). Amounts vary by county.
- **Cannabis is mostly automatic.** Many minor-cannabis arrest records are cleared by ISP without any filing; advise users to verify via the ISP Access and Review process before paying to petition.

AGENT GUIDANCE

Treat the forms as fixed but the filing logistics as county-specific. Default advice: call the circuit clerk for copy counts, fee amount, and e-filing rules before filing.

For Chicago/Cook users with several cases, lead with the single-fee-per-day rule — it changes the filing strategy.

8. Fee information

Item	Typical amount	Note
Total filing cost (per Request)	~\$120–\$160	Varies by county; bundles clerk + ISP fees
Circuit clerk filing fee	~\$60	Set by county
Illinois State Police processing fee	~\$60	Statewide ISP charge per request
Certified copies of the Order	~\$16 for four (then ~\$4/set)	Sent to agencies on completion
Fee waiver	\$0	Application for Waiver of Court Fees if unable to pay
Cook County (same-day petitions)	One fee total	Covers multiple petitions filed same date
Cannabis automatic expungement	\$0	Handled by ISP; no petition fee

Most counties roll the clerk fee, the Illinois State Police fee, and the cost of certified copies into one payment (McLean County's published \$136 is a representative example). The fee is generally charged per Request filed, with the Cook County same-day exception. Any petitioner who cannot afford the cost should file the fee-waiver application rather than delay.

AGENT GUIDANCE

Quote a range (\$120–\$160 typical) rather than a fixed number, and point the user to the specific clerk for the exact amount. Always surface the fee waiver for cost-constrained users.

Cannabis automatic expungement is free — do not let a user pay to petition for something ISP may already be clearing automatically.

9. Criminal record (RAP sheet) request process

An accurate statewide criminal-history transcript is step one of any Illinois filing — the petition must list every arrest and disposition, and the user usually cannot reconstruct that from memory.

A. Statewide history — Illinois State Police (ISP), Bureau of Identification

- ISP maintains the central criminal-history database and is the authoritative source for the RAP sheet used to prepare the petition.
- An individual may obtain their own record through the ISP "Access and Review" process; a fingerprint-based request is the standard method, and a fee applies.
- Use Access and Review to verify whether minor-cannabis records have already been automatically expunged before paying to petition.

B. County court file — circuit clerk

- The circuit clerk in the county of arrest/charge holds the case file and disposition details needed for each line of the Request.
- The clerk also confirms copy counts and any outstanding fines that must be resolved before filing.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Illinois, the FBI fingerprint-based Identity History Summary is the federal equivalent; Illinois expungement/sealing only reaches Illinois records.

VERIFY BEFORE RELYING

ISP request methods, the Access and Review procedure, and fee amounts change. The agent should verify the current ISP Bureau of Identification process and fee at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the ISP transcript as the foundation of the whole filing. Direct users to ISP for the statewide history and to the circuit clerk for county case details.

Have users confirm cannabis records via ISP Access and Review before spending money — many are already cleared automatically.

10. Sample petitions and completed examples

Illinois uses a single combined statewide Request form with checkboxes for expunge vs. seal. The examples below show how that form is completed for each of the three most common scenarios. Names, dates, and identifiers are fictional and illustrative.

Example A — Expungement of a non-conviction (charge dismissed)

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
 REQUEST TO EXPUNGE AND IMPOUND AND/OR SEAL CRIMINAL RECORDS
 Petitioner: Andre L. Carter DOB: 07/22/1992
☒ EXPUNGE ☐ SEAL
 Arrest 1:
 Arresting agency: Chicago Police Department
 Arrest date: 05/03/2021 Case/IR No.: 21-CR-118842
 Offense charged: Retail theft (Class A misdemeanor)
 Disposition: Nolle prosequi (dismissed) on 11/09/2021
 Basis: No conviction was entered; record is eligible for expungement under 20 ILCS 2630/5.2(b). No waiting period.
 Relief requested: expunge all records of this arrest and charge; order ISP and the arresting agency to destroy/return records.
 Notice served on: State's Attorney, Chicago PD, chief legal officer, and Illinois State Police (Notice of Filing attached).

Example B — Expungement after court supervision

IN THE CIRCUIT COURT OF DUPAGE COUNTY, ILLINOIS
 REQUEST TO EXPUNGE ... ☒ EXPUNGE ☐ SEAL
 Petitioner: Maria S. Delgado DOB: 02/14/1995
 Arrest 1:
 Arresting agency: DuPage County Sheriff
 Arrest date: 03/18/2022 Case No.: 2022-CM-000455
 Offense: Possession of drug paraphernalia
 Disposition: Court supervision; completed 03/18/2023
 Basis: Supervision is not a conviction and is expungeable 2 years after successful completion (20 ILCS 2630/5.2(b)). Supervision completed 03/18/2023; eligible 03/18/2025.
 Educational waiver: Petitioner earned an associate's degree during the supervision term -- waiting period waived.
 Relief requested: expunge all records of this arrest and supervision disposition.

Example C — Sealing of an eligible felony conviction

IN THE CIRCUIT COURT OF WILL COUNTY, ILLINOIS
 REQUEST TO ... ☐ EXPUNGE ☒ SEAL
 Petitioner: Darnell R. Pierce DOB: 11/30/1988
 Arrest 1:
 Arresting agency: Joliet Police Department
 Arrest date: 06/12/2019 Case No.: 2019-CF-001203
 Offense: Possession of a controlled substance (Class 4 felony) -- NOT an excluded offense
 Disposition: Convicted; sentence completed 08/01/2022
 Basis: Eligible felony conviction may be SEALED 3 years after

termination of the last sentence (20 ILCS 2630/5.2(c)).
Sentence terminated 08/01/2022; eligible 08/01/2025.
(No drug-test attachment required as of 6/30/2026.)
Confirmation: offense is not DUI, domestic battery, a sex offense, animal cruelty, or a violent/Class X felony.
Relief requested: seal all records of this conviction from public access; record remains available to law enforcement.

Notice of Filing and Order (all types)

Every Request is accompanied by a **Notice of Filing** served on the State's Attorney, arresting agency, chief legal officer, and Illinois State Police (opening the 60-day objection window), and a proposed **Order to Expunge and Impound and/or Seal** with the arrest information completed for the judge's signature. On entry, the clerk distributes certified copies to ISP and the other agencies, which have up to 60 days to process.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Illinois statutes and common practice and is not legal advice. Illinois law is actively changing under the Clean Slate Act; the agent must verify the current 20 ILCS 2630/5.2 text, the applicable Clean Slate effective dates, ISP record-request procedures, and county filing specifics before relying on any rule here.